

25STLC08551 25STLC08551

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-10

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Case Number: 25STLC08551 Hearing Date: September 10, 2026 Dept: 25

HEARING DATE: Thurs., September 10, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: Nunez

v. Lopez COMP FILED: 11-13-25

CASE NUMBER: 25STLC08551

NOTICE: OK

PROCEEDINGS: MOTION TO COMPEL PLAINTIFF'S FURTHER DEPOSITION TESTIMONY AND PRODUCTION OF DOCUMENTS, TO RESUME AND COMPLETE PLAINTIFF'S DEPOSITION, AND FOR MONETARY SANCTIONS

MOVING PARTY: Defendant

Maria Lopez

RESP. PARTY: None

MOTION TO COMPEL FURTHER DEPOSITION
AND PRODUCTION OF DOCUMENTS

(Code Civ. Proc., § 2025.480)

TENTATIVE RULING:

The Court DENIES Maria Lopez's motion
and request for sanctions.

Lopez is to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC,
rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a)
OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c,
1005(b)) OK

OPPOSITION: None
filed as of September 4, 2026 [] Late [X]
None

REPLY: None
filed as of September 4, 2026 [] Late [X]
None

ANALYSIS:

Oscar Julio Martinez Nunez filed a complaint that says
(only) "Maria Lopez Ran Me Over On Dec-29-2023 Causing Me An Injury For What I
Needed An Ambulance To Get Carried To A Hospital For Medical Treatment." Lopez answered, and then attempted to
depose Nunez. Nunez declined to answer certain questions
and declined to produce evidence demanded in Lopez's deposition notice. Lopez's counsel adjourned the deposition,
"subject
to court intervention." The reporter
certified the transcript of those proceedings on May 11, 2026. Lopez now moves for an order compelling Nunez
to continue his deposition and to produce the documents specified in the
deposition notice. Lopez also requests
sanctions.

Having
reviewed the deposition transcript, Lopez's motion is patently
meritorious. But it's also patently untimely. A party must make a motion under Code of
Civil Procedure section 2025.480, the statute on which Lopez relies, "no later
than 60 days after the completion of the record of the deposition." (Code Civ. Proc., § 2025.480, subd. (b).) The record of the
deposition was complete when

the reporter certified the transcript on May 11, 2026. Sixty days elapsed on July 10. Lopez filed her motion on July 21—11 days too

late. Section 2025.480's 60-day deadline is mandatory. (Weinstein v. Blumberg (2018) 25 Cal.App.5th 316, 321.)

The Court therefore DENIES Lopez's motion.

Lopez is to give notice.